



FEDERAL PUBLIC SERVICE COMMISSION
COMPETITIVE EXAMINATION-2024 FOR RECRUITMENT
TO POSTS IN BS-17 UNDER THE FEDERAL GOVERNMENT

Roll Number

INTERNATIONAL LAW

TIME ALLOWED: THREE HOURS	(PART-I MCQs) MAXIMUM MARKS: 20
PART-I (MCQs) : MAXIMUM 30 MINUTES	(PART-II) MAXIMUM MARKS: 80
NOTE: (i) First attempt PART-I (MCQs) on separate OMR Answer Sheet which shall be taken back after 30 minutes. (ii) Overwriting/cutting of the options/answers will not be given credit. (iii) There is no negative marking. All MCQs must be attempted.	

PART-I (MCQs)(COMPULSORY)

Q.1. (i) Select the best option/answer and fill in the appropriate Box ☐ on the OMR Answer Sheet.(20x1=20)
(ii) Answers given anywhere else, other than OMR Answer Sheet, will not be considered.

- Extradition proceedings are based on:**
(A) Principle of equality. (B) Principle of non-interference in domestic affairs.
(C) Principle of Reciprocity. (D) None of these
- Dolus Specialis refers to:**
(A) Special agreement between two states.
(B) Specific intent requirement to constitute the crime of Genocide.
(C) Widespread and systematic nature of the crime of Ethnic Cleansing. (D) None of these
- Which one of the laws is not a source of International Law?**
(A) International Financial Transactions (B) International Principles of Law
(C) International Contracts (D) None of these
- Which of the following conventions encourages state parties to reward indigenous knowledge?**
(A) UN Convention on Bio-Diversity 1992.
(B) UN Convention on Means of Prohibiting Illegal Export of Cultural Property 1970.
(C) UN Convention against Narcotic Drugs and Psychotropic substance 1988. (D) None of these
- United Nations Convention against Torture 1984 prohibits acts of torture committed by:**
(A) Individual citizens.(B) Occupying forces. (C) Non- state actors. (D) None of these
- The Just war doctrine was repudiated after entry into force of;**
(A) Bretton Woods Agreement 1944. (B) The Covenant of the League of Nations 1920.
(C) Kellog-Briand Pact 1928. (D) None of these
- The task of the United Nations Peace Keepers is to:**
(A) Apprehend suspects in conflict zone. (B) Fight war in conflict zone against the aggressor.
(C) To maintain law and order in the conflict zone. (D) None of these
- The Montevideo Convention 1933:**
(A) Sets out definition, Rights and duties of states. (B) Lays down rules on self-determination for states.
(C) Delineates maritime boundaries of states. (D) None of these
- According to the United Nations Convention on Law of the Sea, the breadth of Exclusive Economic Zones shall not extend beyond:**
(A) 200 nautical miles. (B) 300 nautical miles. (C) 100 nautical miles. (D) None of these
- The following resolution of the UN Security Council obliges member states to prohibit terrorist funding and designate terrorist organizations:**
(A) UNSCR 1574. (B) UNSCR 1441. (C) UNSCR 1373. (D) None of these
- The UN Convention against corruption 2006 encourages member states to make laws aimed at protecting:**
(A) Whistle blowers. (B) Witnesses. (C) Both (A) & (B) (D) None of these
- Aut dedere aut judicare obligation requires states to:**
(A) Incarcerate the fugitive. (B) Extradite or prosecute the fugitive.
(C) Request Interpol to capture the fugitive. (D) None of these
- Universal jurisdiction is exercised on the basis of:**
(A) Seriousness of the crime. (B) Universal abhorrence of the crime.
(C) Universal prevalence of the crime. (D) None of these
- Jus ad bellum refers to:**
(A) Law during warfare. (B) Law regulating the decision to go to war.
(C) Law after the outbreak of war. (D) None of these
- Which of the following represent military targets:**
(A) Monuments of martyrs. (B) Prisons. (C) Camps for sick and wounded. (D) None of these

INTERNATIONAL LAW

16. Remedies for unlawful use of force include:
(A) Restoration of territory, reparations and apology.
(B) Monetary compensation, ceding territory and exchange of prisoners.
(C) Both (A) & (B) (D) None of these
17. Select the meaning of the principle of *rebus sic stantibus*:
(A) There is not a crime without Law (B) A treaty must be adhered to faithfully
(C) A fundamental change of circumstances (D) None of these
18. Select the name that is considered to be the father of International Law:
(A) Oppenheim (B) Hugo Grotius (C) Suarez (D) None of these
19. Jus Soli is a principle associated with:
(A) Extradition (B) Nationality (C) Asylum (D) None of these
20. Piracy is a crime within the jurisdiction of the:
(A) Flag State (B) Offenders State (C) All the States (D) None of these

PART-II

- NOTE:** (i) Part-II is to be attempted on the separate **Answer Book**.
(ii) Attempt **ONLY FOUR** questions from **PART-II**. **ALL** questions carry **EQUAL** marks.
(iii) All the parts (if any) of each Question must be attempted at one place instead of at different places.
(iv) Write Q. No. in the Answer Book in accordance with Q. No. in the Q.Paper.
(v) No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed.
(vi) Extra attempt of any question or any part of the question will not be considered.

- Q. No. 2.** (a) Can you draw a distinction between right of self-defense under Article 51 of the UN Charter and right of self-defense under customary international law? Discuss in the light of *Caroline incident* of 1837. (20)
(b) Do you agree with the statement that right to self-defense constitute an exception to prohibition on the use of force under article 2(4) of UN Charter?
- Q. No. 3.** (a) What is prescriptive jurisdiction under international law? Examine its various kinds as set out in customary international law. (20)
(b) Can a state exercise enforcement jurisdiction in the territory of another state? Discuss by reference to *Lotus case* (France V. Turkey) 1927.
- Q. No. 4.** States are considered as original and principal subject of international law. (20)
(a) Provide and discuss two examples illustrating the fact that states possess the most full blown form of legal personality under international law.
(b) Discuss advantages and disadvantages of the fact that states are still the primary subjects of international law.
- Q. No. 5.** (a) Is International law a law or positive morality? Give reasons to support your answer. (20)
(b) In what respects, International law differs from domestic law? Are there any similarities between the two?
- Q. No. 6.** What is Advisory jurisdiction of International Court of Justice (ICJ)? In what respects it can be distinguished from consent based contentious jurisdiction? Discuss in view of *Advisory opinion of the International Court of Justice on the Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory 2004*. (20)
- Q. No. 7.** (a) Narrate the importance of treaty in international law. (20)
(b) Explain various steps in conclusion of a treaty.
- Q. No. 8.** Write short notes on any two of the following: (10 each) (20)
(a) Principle of non-refoulment.
(b) Jurisdiction of a maritime state over coastal waters.
(c) Legitimacy of perfidy and ruses in IHL.
